INDIAN CONSTITUTION

सत्यमेव जयते

Powers and Functions of President in India

- The primary duty of the President is to preserve, protect and defend the constitution and the law of India as made part of his PROMISE (Article 60 of Indian constitution).
- The President is the common head of all independent constitutional entities. All his actions, recommendations (Article 3, Article 111, Article 274, etc.) and supervisory powers (Article 74(2), Article 78 c, Article 108, Article 111, etc.) over the executive and legislative entities of India shall be used in accordance to uphold the constitution.
- There is no bar on the actions of the President to contest in the court of law. The President of India is the Head of State. The system of government of India is a cabinet form of government.
- The Indian President is, therefore, a constitutional head like the King or Queen of Britain—that is, all executive powers are constitutionally vested in him, although those are actually exercised and executed by the cabinet.

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Executive Functions

- **1. Head of the Union:** The President is at the head of the Union Executive. Consequently, all executive powers are exercised in his name.
- **2. Appointments:** As head of the executive, the President appoints the Governors of States, the Judges of the Supreme Court and the High Courts, the Auditor General of India and many other high officials, such as the members of Finance Commission, Election commission, Union Public commission etc
- 3. **Appointment of the Prime Minister and other Ministers:** The President also appoints the Prime Minister and with his advice the other Ministers of the Union Council of Ministers

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Executive Functions

- **4. Can ask to prove Majority in Lok Sabha:** Union Council of Ministers normally remains in office for five years, unless dissolved earlier for any reason. The President must be satisfied that the Council of Ministers enjoys the confidence of the majority of the Lok Sabha. In case of any doubt he can ask the Council of Ministers to prove its majority in the Lok Sabha, as the Prime Ministers Sri H.D. Deve Gowda was asked by the President after the official withdrawal of support by the Congress Party from Ministry. The President can also dissolve the Union Council of Ministers in accordance with Article 75(2) of the constitution, if he finds that the Ministry does not enjoy the support of the majorities in the Lok Sabha.
- 5. **Supreme Commander:** As head of State, the President is the supreme Commander of the Armed Forces of India and is entitled to declare war or conclude a treaty.

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Legislative Powers and Functions

- 1. **President is a part of Parliament:** The Union Legislature or Parliament consists of the President and two Houses of Parliament. The President is, therefore, an integral part of Union Legislature. He shall summon from time to time, either separately or jointly, the Houses of Parliament.
- 2. **Summons and Addresses Parliament:** The President may address either or both House of Parliament. In such address, at the first session after general election to the Lok Sabha and at beginning of a joint session of Parliament each year, he may place the reasons for summoning it.
- **3. Nomination:** The President nominates a number of members in both Houses. The chief purpose of the nomination is to ensure adequate representation in Parliament of all sections of population which many not always be achieved through elections

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Legislative Powers and Functions

- **4. Power in respect of Bills:** The President has certain functions in respect of passing of a Bill. A bill passed by both the Houses of Parliament requires his assent in order to become an Act. He may give his assent to a bill or can withhold assent when a bill, after getting approved in both the Houses, is placed before the President.
- **5. Bill passed by a State Legislature:** A bill passed by a State Legislature may also be reserved for the consideration of the President by the Governor of that State.

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Financial Powers and Functions

- The President of India also exercises financial powers. No money bill can be introduced in Parliament without the recommendations of the President.
- According to the Constitution of India, the Annual Financial Statement is placed by the President before both Houses of Parliament.
- This statement shows the estimates of revenue and expenditure of the central Government for the next year

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Emergency Powers of the President

- The constitution of India empowers the President to proclaim three kinds of Emergencies:

1.National Emergency (Art. 352);

2. Emergency for failure of Constitutional Machinery in a State (Art. 356);

3. Financial Emergency (Art. 360)

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1.National Emergency (Art. 352);

- The President of India may issue a Proclamation of National Emergency when the security of India or any part thereof is threatened by war, armed rebellion or external aggression.

- Such a Proclamation of Emergency may remain in force for an indefinite period. During a Proclamation of National Emergency, the executive power of the States is to be exercised in accordance with the directions given by the Central Government

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Emergency for failure of Constitutional Machinery in a State (Art. 356);

- In Case of failure of Constitutional machinery in a State, the President of India is authorized to make a Proclamation to that effect.
- The maximum duration of this type of emergency is three (3) years. During such an emergency, the President may assume to himself the executive powers of the State.

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Financial Emergency (Art. 360)

- The President may also issue a Proclamation of Financial if he is satisfied that the financial stability of India is threatened.
- This type of emergency may continue to remain in force for an indefinite period.

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Diplomatic powers

- All international treaties and agreements are negotiated and concluded on behalf of the President. However, in practice, such negotiations are usually carried out by the Prime Minister along with his Cabinet (especially the Foreign).
- Also, such treaties are subject to the approval of the Parliament. The President represents India in international forums and affairs where such a function is chiefly ceremonial.
- The President may also send and receive diplomats, i.e. the officers from the Indian Foreign Service. The President is the first citizen of the country.

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Military powers

- The President is the Supreme Commander of the Indian Armed Forces. The President can declare war or conclude peace, on the advice of the Union Council of Ministers headed by the Prime Minister.

- All important treaties and contracts are made in the President's name.

- He also appoints the chiefs of the service branches of the armed forces

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Pardoning Powers / Judicial Powers

- The President of India grants, pardons, reprieves or remissions of punishment to any person who has been convicted by a Court of Law.
- As mentioned in Article 72 of the Indian Constitution, the President is empowered with the powers to grant pardons in the following situations:
  - Punishment is for an offense against Union Law
  - Punishment is by a Military Court
  - Sentence is that of death
- The decisions involving pardoning and other rights by the President are independent of the opinion of the Prime Minister or the Lok Sabha majority. In most cases, however, the President exercises his executive powers on the advice of the Prime Minister and the cabinet.

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